Deviance, Crime, and Social Control

Dr. Fatima Alqabandi · Kuwait University

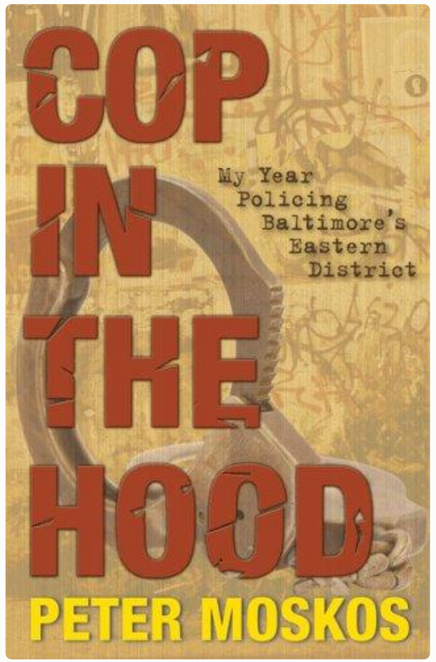
Chapter 7 · Based on Richard T. Schaefer, *Sociology: A Brief Introduction*, 14th ed.

Peter Moskos: A Sociologist in the Baltimore Police

To study crime firsthand, a sociologist joined the police. His patrol raises the questions in this chapter: who breaks rules, who enforces them, and who gets counted.

What Peter Moskos Learned in 20 Months as a Baltimore Police Officer

- Sociologist **Peter Moskos** entered Baltimore's police academy to study policing. A new commissioner challenged him: "Why don't you want to be a cop for real?" So he became one
- For **20 months** he patrolled the Eastern District, answering everything from disorderly conduct to a 12-person shooting. His book *Cop in the Hood* (2008) is an **ethnographic study** (Chapter 2)
- His central point: "Police don't deal with a random cross-section of society." The people officers meet are not typical of the neighborhood, and "the noncriminal public, the routine, and the working folks all get short shrift"



Princeton University Press, 2008.

> An officer's picture of a neighborhood comes from the calls the officer answers. What would that picture leave out of your own neighborhood?

Conformity or Deviance Depends on the Reference Group

- **Binge drinking** violates a school's standards and endangers health, so it is **deviant**. To a peer group that expects it, it is **conforming**
- "Conformity" can mean mindless imitation, like executives all in gray suits, or being a cooperative "team player"
- A police officer who uses excessive force may be seen by some colleagues as someone "who has their back," and by others as making public safety harder



A car drifting in tyre smoke. Wikimedia Commons, CC0.

> A young man drifts a car in an empty lot while his friends film it. To the friends, is he deviant or conforming? To the traffic police? To his mother?

What Is Deviance?

Sociologists use *deviance* for any violation of a group's standards. What counts as deviant depends on the group, the era, and who has the power to define it.

Deviance Is Behavior That Violates a Group's Standards

- **Deviance** — behavior that violates the standards of conduct or expectations of a group or society. To sociologists it does not mean perversion or depravity
- Being late for class is deviant; so is wearing jeans to a formal wedding. By this definition, **we are all deviant from time to time** (Best 2004)
- Deviance goes far beyond crime. An official who takes a bribe and a student who cuts class have both broken norms
- Deviance is **not always negative**:
  - A manager who turns down a relative's *wasta* request and hires the best-qualified applicant is deviating from what the family expects
  - A couple who choose a small, simple wedding when relatives expect a lavish one are deviating from family norms
  - A student who refuses to share answers in the class group chat during an online quiz is deviating from the group's norm
  - A police officer who blows the whistle on corruption or brutality in the department is deviating from its norms too

Deviance Is Socially Defined and Changes over Time

- What counts as deviant is set by **social definition**, in a particular society at a particular time
- Usually the people with the most **status and power** decide what is acceptable
- **Smoking:** doctors warned about tobacco from 1964, yet smoking stayed acceptable for decades, partly because of the power of tobacco farmers and manufacturers. A long public health campaign made it more deviant
- **Tattoos:** long banned for U.S. military recruits. The Navy lifted its ban in 2012 and the Army in 2015, with limits on visibility and content



Camel advertisement, 1948: "More doctors smoke Camels." Internet Archive Book Images.

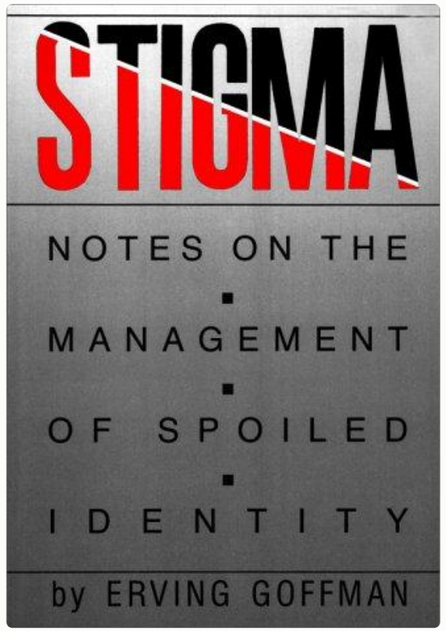
Deviant Where, When, and to Whom? Sort the Cases

For each act, name a setting where it is ordinary and a setting where it is deviant. Then name who decides.

- Eating a sandwich on a public street at noon, during the daylight hours of Ramadan
- Answering a phone call in a lecture
- Wearing gym clothes to a wedding
- Smoking inside a café in 1995, and today
- Using AI to brainstorm an essay with disclosure, and using AI during an exam
- Disagreeing openly with a senior colleague in a meeting

Goffman’s Concept of Stigma

- Some people are cast in **negative social roles** because of physical or behavioral traits. Once labeled, they struggle to present a positive image and may lose self-esteem
- **Stigma** — Erving Goffman’s term for the labels society uses to devalue members of certain social groups, such as “short people” or “redheads” (Goffman 1963)
- In many families, a visit to a psychiatrist is kept quiet for fear the label will follow the patient, and even the patient’s siblings, into marriage proposals. The stigma covers a whole category of people, whatever their condition
- In 2020, people who tested positive for COVID-19, and sometimes their whole families, were avoided even after they recovered. Schaefer lists “COVID-19 survivor” among the labels that can stick to a person
- Which jobs carried a stigma for young Kuwaitis a generation ago, such as barista or shop cashier? Which still do? The work stayed the same; did the label?



Goffman, *Stigma* (1963).

Prestige Symbols, Stigma Symbols, and Labels That Stick

- Labels such as “ex-convict,” “recovering alcoholic,” or “ex-mental patient” can stick for life, long after the behavior has stopped
- Goffman: a **prestige symbol** draws attention to a positive part of one’s identity, such as a wedding band. A **stigma symbol** discredits it, such as a criminal conviction
- Stigma symbols are not always visible, but they can become public through records or social media
- Some deviance stigmatizes a person; some carries no real penalty



A wedding band, Goffman’s example of a prestige symbol. Petar Milošević, CC BY-SA 4.0.

Technology Redefines the Norms of Online Behavior

- New technology creates situations with no norms yet. Early internet anonymity made harsh comments and chat-room hogging common, and people now call for formal rules (Chapter 6)
- Some deviant uses of technology are crimes, though not everyone sees them that way. Downloading copyrighted music is **widely accepted**, and despite industry campaigns, **no social stigma** attaches to it

Deviance is a complex concept. Sometimes it is trivial, sometimes profoundly harmful. Sometimes society accepts it, and sometimes society soundly rejects it.

Which Online Behaviors Carry a Stigma? Rank the Cases

Rank these from “nobody cares” to “people would cut you off.” Then mark the ones that are illegal.

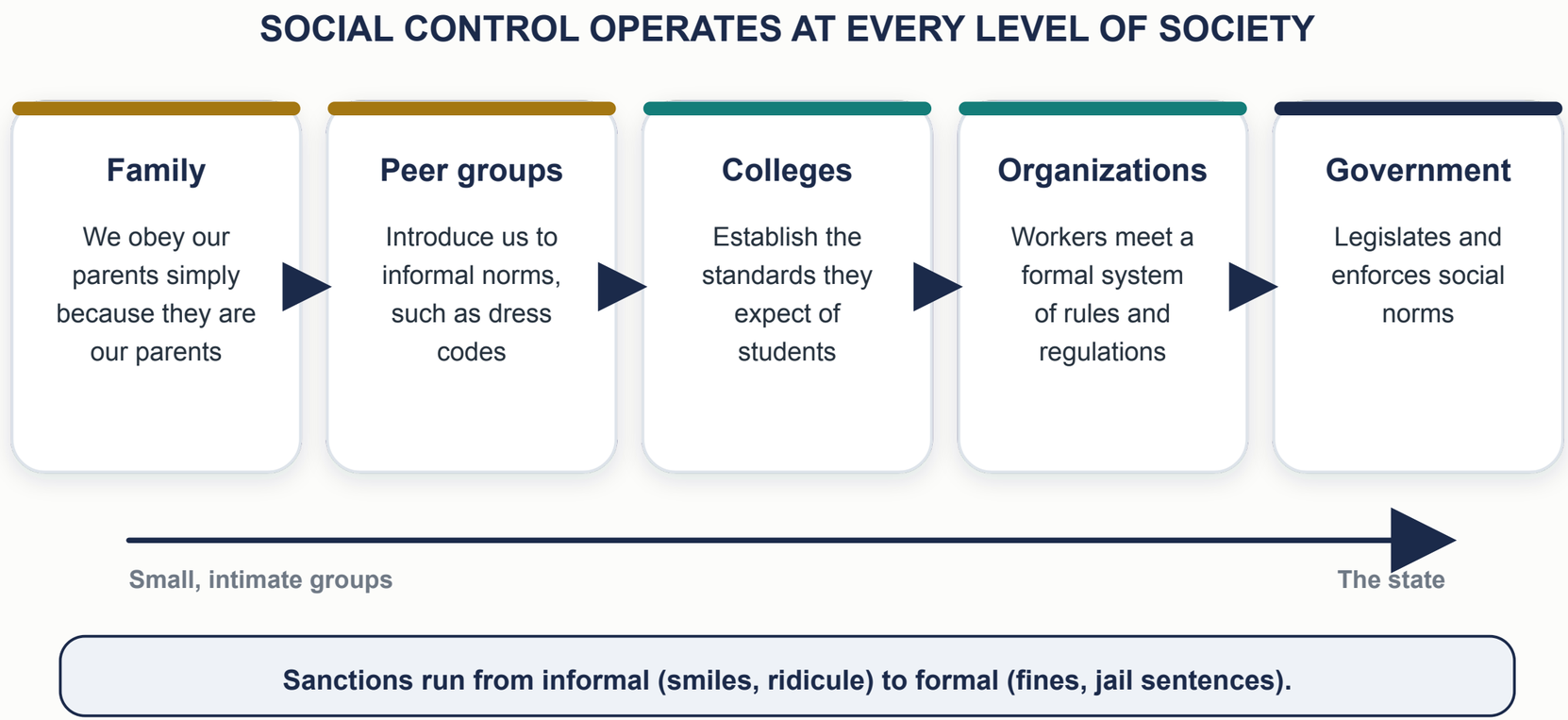
1. Streaming a football match through an unofficial link
2. Sharing a friend’s password for a streaming service
3. Screenshotting a private chat and posting it to a group
4. Leaving a family WhatsApp group without a word
5. Posting a fake five-star review for a cousin’s restaurant
6. Reading a message and not replying for three days

Social Control

Every group has ways to keep its members in line, from a raised eyebrow to a prison sentence. Most of the time we comply without noticing.

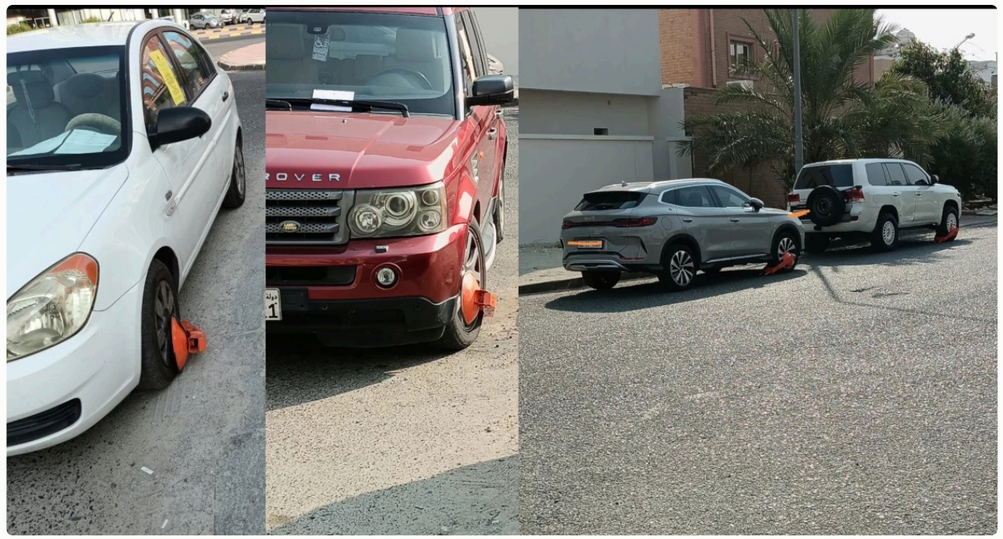
Social Control Operates at Every Level of Society

- **Social control** — the techniques and strategies for preventing deviant human behavior in any society
- Laws, dress codes, organizational bylaws, course requirements, and the rules of sports and games all express social norms (Chapter 3)



Sanctions and Competing Messages About How to Behave

- Most of us follow basic norms without thinking: we obey police officers and move to the back of the elevator. That is effective **socialization**
- **Sanctions** — penalties and rewards for conduct concerning a social norm. They can be **informal**, such as ridicule, or **formal**, such as fines and jail
- People often get **competing messages**: the law says one thing, friends or co-workers encourage another
- The recent changes and increased enforcement of traffic laws in Kuwait.



Clamped cars on residential streets in Kuwait, October 2026.

Functionalist and Conflict Views of Social Control

- **Functionalists:** a society could not function if large numbers of people defied its norms
- **Conflict theorists:** the successful functioning of a society consistently benefits the powerful at others' expense
- Their evidence: in the United States, resisting norms was necessary to win independence, end slavery, win women the vote, and secure civil rights



Woman Suffrage Procession, Washington, D.C., 1913. U.S. National Archives, public domain.

Milgram Distinguished Conformity from Obedience

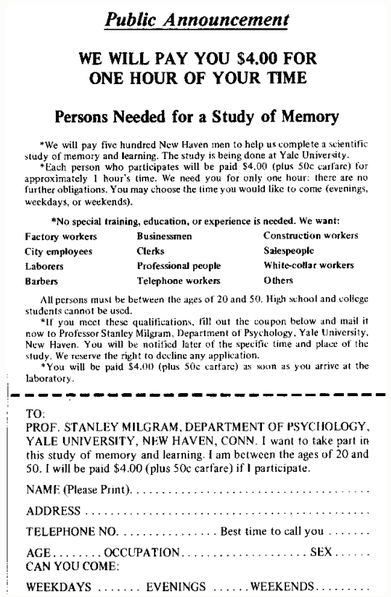
- **Conformity** — going along with peers, people of our own status who have no special right to direct our behavior (Milgram 1975)
- **Obedience** — compliance with higher authorities in a hierarchical structure
- A military recruit **conforms** to other recruits' habits and language, and **obeys** superior officers



Recruits in formation facing their instructors. Michael Tolzmann, U.S. Air Force, public domain.

The Milgram Experiment: Teachers, Learners, and a Shock Generator

- Milgram recruited ordinary people in New Haven, from postal clerks to engineers, for a Yale study of the effects of **punishment on learning**
- An experimenter in a gray technician's coat ran a rigged draw: the real subject was always the "**teacher**," and Milgram's associate played the "**learner**"
- The teacher sat at a "shock generator" with **30** switches from **15** to **450** volts and was told to raise the voltage after every wrong answer
- **The learner received no shocks.** The teacher did not know that



Public Announcement

WE WILL PAY YOU $4.00 FOR ONE HOUR OF YOUR TIME

Persons Needed for a Study of Memory

*We will pay five hundred New Haven men to help us complete a scientific study of memory and learning. The study is being done at Yale University.

*Each person who participates will be paid $4.00 (plus 50c carfare) for approximately 1 hour's time. We need you for only one hour: there are no further obligations. You may choose the time you would like to come (evenings, weekdays, or weekends).

***No special training, education, or experience is needed. We want:**

Factory workers	Businessmen	Construction workers
City employees	Clerks	Salespeople
Laborers	Professional people	White-collar workers
Barbers	Telephone workers	Others

All persons must be between the ages of 20 and 50. High school and college students cannot be used.

*If you meet these qualifications, fill out the coupon below and mail it now to Professor Stanley Milgram, Department of Psychology, Yale University, New Haven. You will be notified later of the specific time and place of the study. We reserve the right to decline any application.

*You will be paid $4.00 (plus 50c carfare) as soon as you arrive at the laboratory.

TO:
PROF. STANLEY MILGRAM, DEPARTMENT OF PSYCHOLOGY, YALE UNIVERSITY, NEW HAVEN, CONN. I want to take part in this study of memory and learning. I am between the ages of 20 and 50. I will be paid $4.00 (plus 50c carfare) if I participate.

NAME (Please Print). . . . . .

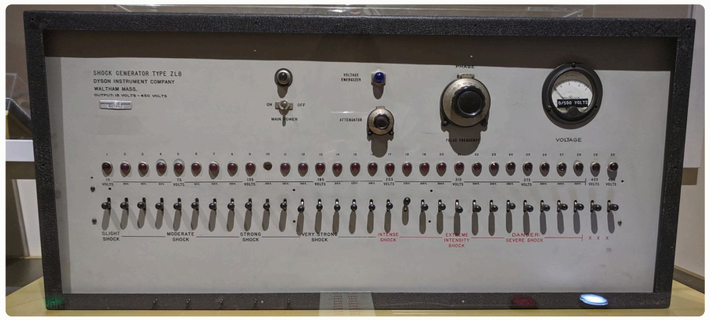
ADDRESS . . . . . .

TELEPHONE NO. . . . . Best time to call you . . . . . .

AGE . . . . . OCCUPATION . . . . . SEX . . . . . .

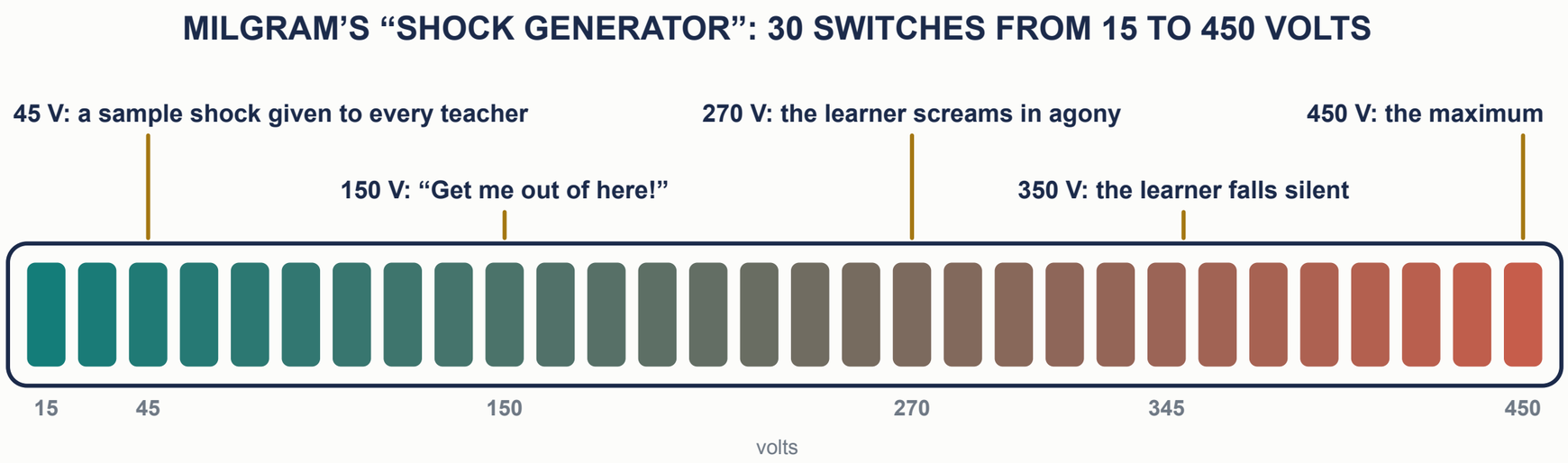
CAN YOU COME:

WEEKDAYS . . . . . EVENINGS . . . . . WEEKENDS . . . . . .



Milgram's recruitment ad and the original shock generator.

Predict: How Many Teachers Obeyed to the End?



The learner, Milgram's associate, received no shocks. When a teacher hesitated, the experimenter insisted: "The experiment requires that you continue." "You have no other choice; you must go on."

Milgram 1963, 1975. Instructor illustration; the 350-volt point falls between the 345- and 360-volt switches.

> Out of 100 ordinary people in the teacher's chair, how many would you predict become "obedient subjects"?

- A sample of **psychiatrists** predicted that virtually all subjects would refuse. Only a "pathological fringe" of **less than 2 percent** would continue to the maximum level
- In fact, **almost two-thirds** of participants fell into the category of "obedient subjects" (Milgram 1975:19–23)

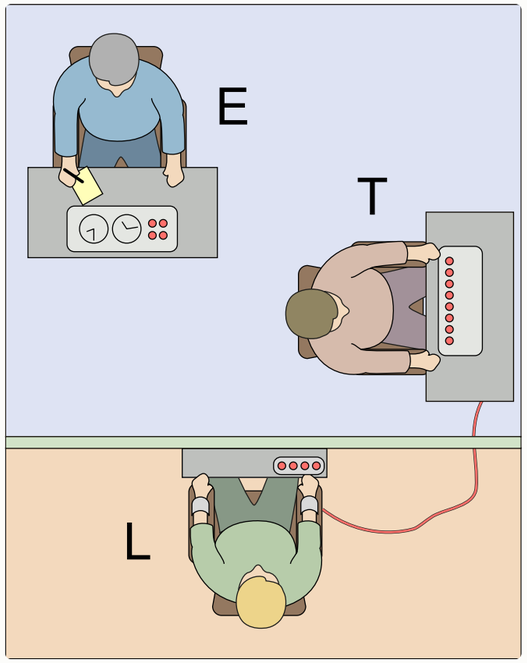
Why Did Milgram's Subjects Obey?

- The subjects were not unusually sadistic. Few seemed to enjoy giving the shocks
- Milgram pointed to the experimenter's **social role**. We are used to obeying **impersonal authority figures** marked by a title (professor, doctor) or a uniform (the technician's coat)
- Subjects **shifted responsibility** to the authority: "If it were up to me, I would not have administered shocks"

- **Would people still obey today?** In 2006 **Jerry Burger** repeated part of the study with undergraduates and found **70 percent** full obedience, not significantly different from Milgram's **82.5 percent** at the same point (Burger 2009, 2014)
- **Virtual reality** versions agree: teachers feel similar stress and still largely obey (Cornet and Van Gelder 2020; Slater et al. 2006)

The Interactionist Reading: Physical Distance and 15-Volt Steps

- When teachers were moved physically **closer** to the learner, fewer gave shocks
- In one version, the learner refused at 150 volts to touch the shock plate. **40 percent** of teachers stopped; **30 percent** forced his hand onto it
- The voltage rose **15 volts at a time**, so the experimenter was negotiating with the teacher step by step
- Obedience would probably have been far lower had the first order been 450 volts (Allen 1978; Katovich 1987)



Standard setup: experimenter (E) and teacher (T) in one room, learner (L) behind a wall. Fred the Oyster, CC BY-SA 4.0.

Use Your Sociological Imagination: Would You Have Obeyed?

If you were a participant in Milgram's research, how far do you think you would go in carrying out orders?

- Schaefer asks: do you see an ethical problem with the experimenter's manipulation of the subjects? Check it against Chapter 2's ethical duties, including informed consent
- Which condition would make you most likely to stop: a victim in the same room, bigger jumps in voltage, or an experimenter without a coat?
- Where in your future field will someone with a title or a uniform tell you to continue?

Informal and Formal Social Control

- **Informal social control** — used casually to enforce norms: a smile, laughter, a raised eyebrow, ridicule
- Many adults treat spanking or slapping children as proper informal control. Child development specialists say it teaches children to solve problems through violence, and research links it, even alongside warm parenting, to adolescent social conduct disorder
- **Formal social control** — carried out by authorized agents such as police, judges, school administrators, and employers. Often a **last resort** when socialization and informal sanctions fail
- Informal control can **undermine** formal control, encouraging people to break norms

Informal or Formal? Sort the Sanction

Classify each sanction as informal or formal.

1. An aunt’s comment about your weight at a family lunch
2. A speed-camera fine that appears on your phone
3. The class group chat goes quiet after your message
4. A professor deducts marks for a late assignment
5. “What will people say?” (*kalam al-nas*)
6. A mall security guard asks you to stop filming
7. Friends cheer when you finally quit vaping
8. A diwaniya laughs about someone’s new car

Formal Social Control: The Death Penalty and Surveillance

- The **death penalty** is meant to deter others as much as to punish. Researchers have not been able to establish what deterrent effect, if any, it has
- After **September 11, 2001**, the United States expanded surveillance at airports and high-rise buildings and asked citizens to report suspicious behavior (Monahan 2011)
- Civil rights advocates warned this would encourage stereotyping of **Muslims and Arab Americans**. There is a clear trade-off between surveillance and **privacy**



A portable “Rased” speed camera on a Kuwaiti highway, 2025. *Kuwait Times*.

> Speed cameras, mall CCTV, and the location data on your phone: which did you agree to, and which were simply installed?

Law and Society

Some norms matter so much that a society writes them into law. Sociologists study lawmaking as a social process that shows whose values prevail.

Law Is Governmental Social Control

- **Law** — governmental social control (Black 1995). Some laws apply to everyone, such as the ban on murder; others apply to particular groups or institutions
- Sociologists treat lawmaking as a **social process** that reflects changing standards of right and wrong (Schur 1968)
- The legal order reflects the values of **those in authority**, so making a law means choosing among competing values
- Laws without public support behind them are **hard to enforce**



Kuwait's National Assembly in session, 1963. Hassan Hamdy Wahidy, public domain.

Which Laws Are Likely to Change Next?

Schaefer: law reflects changing standards of right and wrong. Which laws do you think are likely to change soon because social standards are changing?

- Start with technology that arrived faster than its rules: e-scooters, drones, delivery-bike riders, deepfake images, AI in coursework
- Which rule in daily life here is widely ignored because few people support it? What would it take to enforce it: more cameras, higher fines, or a change in opinion?
- Schaefer also asks: should some illegal drugs be decriminalized? Why or why not?



A rental e-scooter recovered from the river Main, Frankfurt, 2021. Matti Blume, CC BY-SA 4.0.

Socialization and Hirschi's Control Theory

- **Socialization** is the main source of conformity. We have **internalized** norms, and we want to be seen as loyal, cooperative, and responsible
- **Control theory** — our connection to members of society leads us to systematically conform. For **Travis Hirschi**, bonds to family, friends, and peers keep us following norms (Hirschi 1969)
- The media focus on crime, but **most members of most societies conform** to basic norms (Schmalleger 2020)

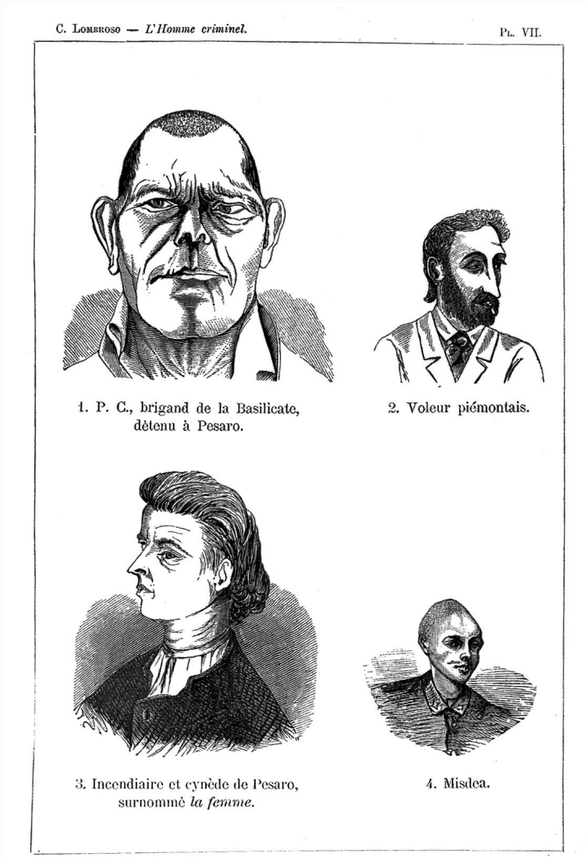
> Think, privately, of a rule you were tempted to break this week: skipping a lecture, or running an empty red light at 3 a.m. What stopped you: the fine, or the thought of who would find out?

Sociological Perspectives on Deviance

If sanctions are everywhere, why does deviance happen at all? Each perspective answers a different part of the question: why rules are broken, how people learn to break them, and who gets labeled for it.

Early Explanations Blamed the Supernatural and Biology

- Early explanations blamed supernatural forces or “bad blood.” Nineteenth-century research on biological causes of crime was **discredited** in the 20th century
- Some biochemists now look for genes linked to traits such as **aggression**. But aggression also brings success in business and sports, and criminality is hardly a personality trait
- Sociologists are generally critical of genetic explanations and look to social ones (Cohen 2011)



“Criminal types” from Cesare Lombroso’s *L’Homme criminel*. Wellcome Collection, CC BY 4.0.

Functionalist View: Deviance Defines the Limits of Proper Behavior

- Functionalists see deviance as a normal part of social life, with **positive as well as negative** consequences for stability
- **Émile Durkheim** ([1895] 1964): punishments show everyone where the line is. Without them, people might stretch their standards of conduct
- A child who sees one parent scold the other for belching at dinner learns the rule. So does a student penalized for a paper handed in weeks late



Émile Durkheim. Public domain.

> A student in a 200-seat course is penalized for plagiarism. What do the other 199 students learn?

Durkheim’s Anomie: Normlessness During Profound Change

- **Anomie** — Durkheim’s ([1897] 1951) term for the loss of direction felt in a society when social control of individual behavior has become ineffective
- It typically appears during revolution, sudden prosperity, or economic collapse. People agree less on proper behavior, and rates of **violent crime and suicide** rise (Chapter 1)


LE

SUICIDE

ÉTUDE DE SOCIOLOGIE

PAR

ÉMILE DURKHEIM

Professeur de Sociologie à la Faculté des Lettres de l'Université de Bordeaux

PARIS

ANCIENNE LIBRAIRIE GERMER BAILLIÈRE ET Cie

FÉLIX ALCAN, ÉDITEUR

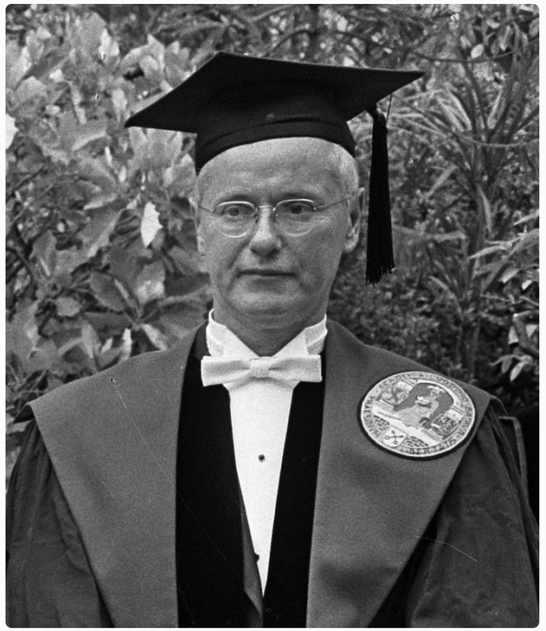
1897

Tous droits réservés.

Title page of *Le Suicide* (1897). Internet Archive, public domain.

Merton: Cultural Goals and Institutional Means

- What do a mugger and a teacher have in common? Both are “working” for money to buy the things they want
- **Robert Merton** (1968): U.S. culture sets **success**, measured largely in money, as a goal, and approves certain **means** of reaching it: school, hard work, persistence
- People can accept or reject the goals, the means, or both. Merton’s **anomie theory of deviance** names five ways of adapting



Robert K. Merton, 1965. Eric Koch / Anefo, CC0.

Merton’s Five Modes of Adaptation

- **Goal** — what society tells you to want: success, measured largely in money
- **Means** — the approved ways to get it: school, a job, hard work

Mode	Still wants success?	Still uses the approved ways?	Example
Conformity	Yes	Yes	An employee works long hours to earn a promotion and a raise. The only nondeviant mode
Innovation	Yes	No: finds a shortcut	A hacker steals money for consumer goods and vacations
Ritualism	No: has given up on it	Yes: follows the rules for their own sake	A caseworker refuses to help a homeless family because their last apartment was in another district
Retreatism	No	No: drops out of both	In the United States, drug addicts and vagrants are typically portrayed this way
Rebellion	No: wants different goals	No: wants a different system	Members of a revolutionary political organization

- Merton’s insight: innovators and ritualists **share a great deal with conformists**. Deviance is **socially created**, not a momentary pathological impulse
- The weakness: the theory has **not been applied systematically** to real-world crime

Merton’s Five Modes at University and Work

Schaefer asks for an example of each of Merton’s five modes from work or college life. Start by classifying these.

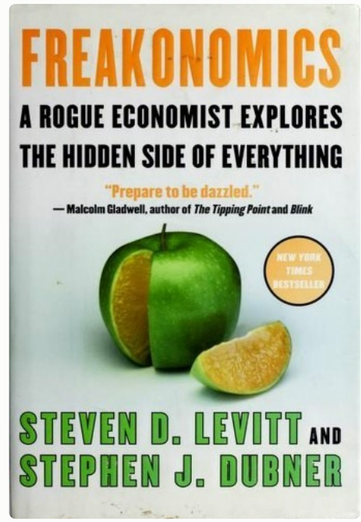
1. A student buys a finished project online to protect a high GPA
2. A student studies every night to win a place in medical school
3. A ministry clerk rejects a form because it was signed in blue ink instead of black
4. A student has stopped caring about grades or a degree, and has stopped coming
5. An engineer lists a certificate on her CV that she never earned
6. A graduate rejects the degree-to-job path and founds a cooperative where pay does not depend on credentials

> Which case did the room disagree about most? What would you need to know about the person’s goals to decide?

Box 7-3: Does Crime Pay? Predict the Gang Leaders' Earnings

- Sociologist **Sudhir Venkatesh** observed a **Chicago street gang** and collected detailed data on its drug trade. Economist **Steven Levitt**, coauthor of *Freakonomics*, helped him analyze the business

> What share of the gang's **leaders** do you think earned $100,000 a year? What did the rank and file earn?

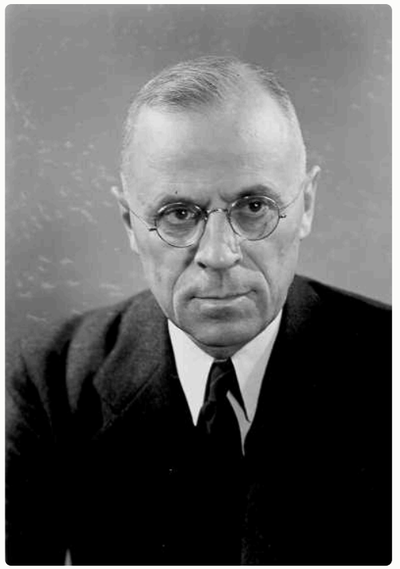


Levitt and Dubner, *Freakonomics* (2005).

- **Less than 5 percent** of even the gang leaders earned $100,000 a year. Almost all the rank and file earned **less than the minimum wage**, and most were unpaid, hoping to move up
- Levitt's chapter title: "Why Do Drug Dealers Still Live with Their Moms?" Like most corporations, the top **2 percent** take home most of the money
- So why does the trade persist? Demand for illegal drugs is high, and legitimate jobs for young people in poor areas are scarce

Interactionist View: Sutherland's Cultural Transmission and Differential Association

- Functionalists explain why rule-breaking persists. Interactionists explain how a **particular person** comes to break rules
- **Edwin Sutherland**: we learn deviant behavior through the **same socialization** that teaches conforming behavior
- **Cultural transmission** — one learns criminal behavior by interacting with others: the **techniques** of lawbreaking and the **motives and rationalizations** for it
- **Differential association** — the process through which exposure to attitudes favorable to criminal acts leads to the violation of rules. An outgoing, athletic boy in a high-delinquency area may join peers who vandalize; in another neighborhood, he joins a soccer team
- **Critics:** it fits graffiti crews and delinquent gangs, but not the first-time impulsive shoplifter or someone who steals out of need (Sutherland et al. 1992)



Edwin H. Sutherland. Wikimedia Commons, CC BY-SA 4.0.

Who Taught the Technique, and Who Taught the Excuse?

Pick a minor rule-breaking you have seen among people your age: vaping in a car, cutting a bakery line, slipping a phone into an exam, drifting in an empty lot.

- Who taught the **technique**? Where did people learn to do it without getting caught?
- Who taught the **rationalization**: “everyone does it,” “the rule is pointless,” “nobody gets hurt”?
- Sutherland’s outgoing boy joins a soccer team in one neighborhood and a vandal crew in another. What plays the soccer team’s role for young people here?

Predict: What Happened to Zimbardo's Two Abandoned Cars?

- Philip Zimbardo, author of Chapter 5's mock prison experiment, **abandoned a car** in each of two neighborhoods. He left each car's hood up, removed its hubcaps, and set up a remote video camera to record what people did



Philip Zimbardo, 2017. Elekes Andor, CC BY-SA 4.0.

> What happened to each car, and how quickly?

- In one neighborhood, people started stripping the car for parts **before Zimbardo had finished setting up** the camera
- In the other, **weeks** passed without anyone touching the car, except a pedestrian who stopped to **close the hood** during a rainstorm (Zimbardo 2007a)

> The cars were identical. What was different about the two neighborhoods?

Social Disorganization Theory: Shaw and McKay Mapped Chicago

- **Social disorganization theory** — crime and deviance rise when communal relationships and institutions, such as family, school, church, and local government, break down
- **Clifford Shaw and Henry McKay** mapped Chicago's social problems. Rates were high where buildings had deteriorated and population had declined, and the patterns **persisted** as the residents' ethnic makeup changed (Shaw and McKay 1942)
- **Critics:** the theory can "blame the victim" and ignore larger forces, such as a lack of jobs or good schools

> Which institutions hold an area in Kuwait together: the co-op, the mosque, the diwaniya, the school? What would you expect to change if one of them closed?

The Saints and the Roughnecks: Same Behavior, Different Outcomes

Two groups of high school males engaged constantly in excessive drinking, reckless driving, truancy, petty theft, and vandalism.

The Saints

None was ever arrested.

The Roughnecks

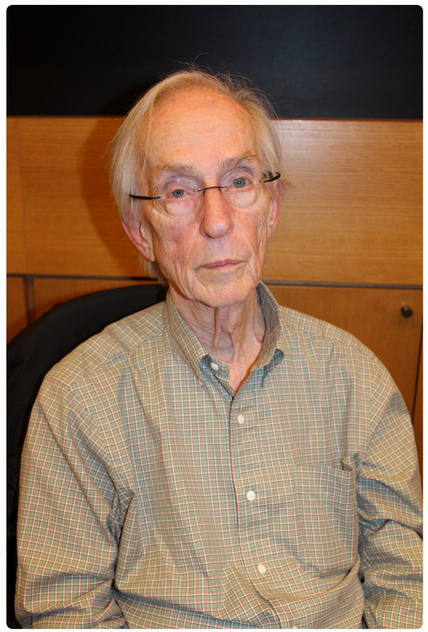
Every one was frequently in trouble with the police and townspeople.

> Why the disparity?

- Sociologist **William Chambliss** (1973; Chambliss and Haas 2012) observed their high school and concluded that **social class** mattered
- The Saints came from “good families,” got good grades, and planned to attend college. Their acts were seen as “sowing wild oats”
- The Roughnecks drove beat-up cars, did poorly in school, and aroused suspicion no matter what they did

Labeling Theory: Deviant Behavior Is Behavior That People So Label

- Labeling theory asks why some people, like the Roughnecks, are labeled deviant while others who act the same, like the Saints, are not
- **Howard Becker**: “Deviant behavior is behavior that people so label” (1963:9). This is the **societal-reaction approach**: the **response** to an act, not the act itself, determines deviance
- Labels come from **agents of social control**: police, judges, teachers, psychiatrists, employers. Their power to label ties this theory to the **conflict** perspective
- **Racial profiling** — any arbitrary action initiated by an authority based on race, ethnicity, or national origin rather than on a person’s behavior (Chapter 10)



Howard S. Becker, 2012. Thierry Caro, CC BY-SA 3.0.

Social Constructionism: How a Behavior Becomes a Social Problem

- **Social constructionism** — deviance is the product of the culture we live in. It studies the decisions that turn a behavior into a recognized problem
- “Child abductors” and “spree killers” have always existed, but **intensive media coverage** can suddenly make them a priority for policymakers
- **Smoking** went from a gentlemanly habit to a health hazard. Concern now extends to **thirdhand smoke** that clings to clothes, cars, and elevators (Winickoff et al. 2009)



An ashtray printed with a no-smoking sign. rcooper, CC BY-SA 2.0.

> Vaping was first marketed as a safer alternative to cigarettes. How is it described in the news and at home now? Who did the redefining?

You Are the Teacher: Which Labels Would You Attach?

Schaefer asks: you are a teacher. What labels, freely used in education, might you attach to your students?

- List the labels you heard at school: “gifted,” “lazy,” “the clever one,” “the troublemaker,” “the back row.” Who applied them, and when?
- A child is labeled a troublemaker in Grade 3. What does labeling theory predict by Grade 10? What would Chambliss want to know about the child’s family?
- The same direct comment in a meeting: when is it called “confident,” and when “aggressive”? Who decides?

Banksy's *Flower Thrower*: Vandalism, Artwork, or Political Protest?

- In 2003 the English street artist **Banksy** painted a work often titled *Rage, the Flower Thrower* in Jerusalem, on the West Bank barrier wall separating Israel from its occupied territories
- The image shows a protester hurling a bouquet of colorful flowers, not a Molotov cocktail
- It was one of many controversial works Banksy made to support **Palestinian rights**



The mural near Bethlehem. Photo: Jennifer Simon, CC BY 2.0; artwork © Banksy.

How do we label people's behavior? Is this vandalism? Artwork? Political protest?

Who has the authority to apply each label: the owner of the wall, the police, a museum, or the people who walk past it every day?

Conflict View: Quinney Argues That the Powerful Define Crime

- Conflict theorists: people with power **define deviance to suit their needs**
- **Richard Quinney**: crime is a definition created by legislators and law enforcement, and lawmaking is often an attempt by the powerful to **coerce others into their morality** (Quinney 1970)
- Criminal law reflects competing interests. U.S. law bans marijuana for its alleged harm, while cigarettes and alcohol, both harmful, are sold legally almost everywhere



New York agents pour liquor into a sewer during U.S. Prohibition (1920–1933). Library of Congress, public domain.

In Kuwait, alcohol is illegal and tobacco is legal. In the United States, alcohol and tobacco are legal while marijuana is federally illegal. Does Quinney's argument fit both cases equally well? How would a functionalist explain Kuwait's law?

Differential Justice: Discretion at Every Stage

- **Differential justice** — differences in the way social control is exercised over different groups
- Officials use **discretion** at every stage: to press or drop charges, set bail, grant or deny parole. Conflict theorists find these decisions disadvantage some racial, ethnic, and social-class groups (Yusef et al. 2019)
- Powerful groups are unlikely to label as “deviant” the executive whose decisions lead to large-scale environmental pollution



A courtroom of the Supreme Court of Singapore. Sgconlaw, CC BY-SA 4.0.

> List the decisions between an arrest and a sentence where someone uses discretion. At which one could money, a family name, or a phone call make the biggest difference?

Table 7-2, Part 1: Anomie, Cultural Transmission, and Social Disorganization

Each approach answers a different question about deviance. Schaefer's one-line summary of each is in bold.

Approach	The question it answers	What it says	Example from this chapter
Anomie Functionalist *Durkheim, Merton*	Why do people break rules at all?	**Adaptation to societal norms.** Society tells everyone to want success but does not give everyone an approved way to reach it, so some people adapt by breaking rules. Norms also weaken during sudden change	Merton's innovator: a hacker steals money for vacations. In an economic collapse, violent crime and suicide rise
Cultural transmission / Differential association Interactionist *Sutherland*	How does a person learn to break rules?	**Patterns learned through others.** Deviance is learned the same way conformity is, from friends and family, who teach both the techniques and the excuses	The outgoing, athletic boy who joins vandals in one neighborhood and a soccer team in another
Social disorganization Interactionist *Shaw, McKay*	Why is crime higher in some places?	**Communal relationships.** Crime rises where the institutions that hold a community together (e.g., family, school, club, local gov) have broken down	Shaw and McKay's maps of Chicago: problems stayed in the same run-down areas even as the residents changed

Table 7-2, Part 2: Labeling and Conflict Theory

Approach	The question it answers	What it says	Example from this chapter
Labeling / Social constructionist Interactionist *Becker, Chambliss*	Why are some people called deviant and others not?	**Societal response to acts.** An act becomes deviant when people with authority label it so. Who gets labeled can matter more than what they did	A child labeled "the troublemaker" in Grade 3; smoking redefined from a gentlemanly habit to a health hazard
Conflict Conflict *Quinney*	Who decides what counts as a crime?	**Dominance by authorized agents; discretionary justice.** People with power write the laws, and police, prosecutors, and judges use discretion over charges, bail, and parole in ways that favor some groups over others	U.S. law bans marijuana for its alleged harm, while alcohol and tobacco are sold legally

Schaefer asks: which sociological perspective is most useful in analyzing white-collar crime? Vandalism? Cocaine use?

Which Perspective Explains the Case Best?

Match each case to the approach in Table 7-2 that explains it best.

1. The Saints and the Roughnecks
2. A graffiti crew that trains its new members
3. A student who buys a finished project to protect a high GPA
4. One car stripped in minutes, another left untouched
5. Embezzlement punished more lightly than petty theft

Which cases needed two approaches? What does each approach leave unexplained?